

Court No. - 21

Case :- WRIT - C No. - 7236 of 2022

Petitioner :- Opulent Infra Developers (Pvt) Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Ajay Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

As jointly prayed, put up as fresh tomorrow i.e. on 08.04.2022.

Order Date:- 7.4.2022

CS/-

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

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On request of counsel for the petitioner, put up as fresh on 11.4.2022.

Order Date:- 8.4.2022

CS/-

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

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By means of instant writ petition, the petitioner has, inter alia, called in question validity of the amendment carried out by the UP Electricity Supply Code (13th Amendment), 2018 dated 10.8.2018 in Clause 4.9 of the Code to the extent it relates to conversion of existing single point connection to multiple point connection in multi storied buildings etc.

The principal submission is that the petitioner was sanctioned a load of 2200 KVA by respondent corporation on 3.11.2016. The connection was to be released upon deposit of TC amount of Rs. 49,43,421/-. Initially the said amount was appropriated against the excess amount payable to Hi Lead Infotech (Pvt.) Limited, a sister concern of the petitioner. Later on, an audit objection was raised that TC amount payable by the petitioner cannot be adjusted against any sum payable to another company. Notices were issued to the petitioner from time to time to deposit the said amount so that 2200 KVA electricity connection could be released in pursuance of the sanction order. Now, by impugned notice, the petitioner has been informed that in case, it does not get its connection regularized, the electricity supply will be discontinued.

It is urged that the respondents are insisting upon release of multiple point connection in place of already sanctioned single point connection in view of the amended provision of the Supply Code which, it is urged, is difficult to comply with, at this stage, as the wiring and other development in the building has been done long back as per the requirement of a single point connection.

Learned counsel for the petitioner also submitted that in identical circumstances, several writ petitions challenging the validity of the amended provision of the supply code are pending before this Court and interim orders are in operation.

Learned counsel for the petitioner further submitted that the

petitioner is ready to deposit Rs. 49,41,421/- as TC charges within a week.

Sri Ajay Singh, learned counsel for the respondent No. 2 and Sri Abhishek Srivastava, learned counsel appearing on behalf of the respondents No. 3 to 5 submitted that the principal reason for making the amendment is to address to the evil practice of builders charging tariff from the flat owners at a higher rate than applicable tariff. They very fairly admitted that vires of amended provisions is in question in large number of petitions pending before this Court wherein interim orders have also been passed.

As prayed by them, three weeks' time is allowed to them to file counter affidavit.

List in the week commencing 9.5.2022.

In the meantime, subject to the petitioner depositing Rs. 49,43,421/- with respondent No. 5 within a week from today, its electricity supply will be continued subject to further condition that the petitioner will continue to make regular payment of electricity bills to the respondents and will itself not charge higher amount from the flat owners but as per the applicable tariff.

(Dinesh Pathak,J.) (Manoj Kumar Gupta,J.)

Order Date :- 11.4.2022

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